

UNIT 4**RIGHT AND RESPONSIBILITIES****Rights and Responsibilities of a Citizen:**

Rights are freedoms or privileges that citizens are allowed to by law. These rights ensure that individuals are treated fairly, can express themselves, and participate in their community without discrimination. Responsibilities, on the other hand, are duties or obligations that citizens are expected to fulfill to maintain a peaceful, productive, and just society.

Rights of a Citizen of Pakistan:

Citizens have specific rights that protect them from harm, give them the freedom to act, and allow them to participate in their country's governance. These rights are essential for ensuring equality and justice in society. In Pakistan, the Constitution guarantees many rights to its citizens.

The Constitution of Pakistan 1973 guarantees various fundamental rights to its citizens, listed from Article 8 to 40 (Part-I: Chapter 1: Fundamental Rights). These rights ensure the protection and welfare of citizens in different areas such as equality, freedom, and justice. Let's go through them one by one:

Overview of Fundamental Rights and Liberties of Citizens Under Constitution of Pakistan 1973:

The Constitution of Pakistan 1973 guarantees various fundamental rights to its citizens, listed from Article 8 to 40 (Part-I: Chapter 1: Fundamental Rights). Here is a detailed explanation of each article from the Constitution of Pakistan 1973 with examples in easy English:

- 1. Article 8 — Laws Inconsistent with or in Derogation of Fundamental Rights:** This article ensures that any law that goes against fundamental rights is considered invalid. The government cannot pass or enforce laws that take away citizens' basic rights. If a law tries to limit freedom of speech, it would be declared void because it contradicts the right to freedom of speech provided in the Constitution.
- 2. Article 9 — Security of Person:** Every person has the right to life and personal liberty. No one can be deprived of their life or freedom except according to legal procedures. If someone is detained without proper legal procedures, it is a violation of their right to life and liberty.

Article 10 — Safeguards as to Arrest and Detention: This article protects citizens from being arrested or detained arbitrarily. It requires the government to

follow proper legal steps before arresting or detaining anyone. If someone is arrested, they must be informed of the charges, have access to a lawyer, and be brought before a court within 24 hours.

4. **Article 10 - A — Right to Fair Trial:** Every citizen has the right to a fair and public trial in a court of law. The government must ensure that justice is served without bias. If someone is accused of a crime, they have the right to defend themselves in court and receive a fair judgment.

5. **Article 11 — Slavery, Forced Labour, etc., Prohibited:** This article bans slavery and any form of forced labor. Children cannot be forced to work either. Forcing someone to work without pay, or against their will, is illegal under this article.

6. **Article 12 — Protection against Retrospective Punishment:** This article prevents citizens from being punished for actions that were not crimes at the time they were committed. If a new law is made today, no one can be punished for breaking that law before it existed.

7. **Article 13 — Protection against Double Punishment and Self-Incrimination:** A person cannot be punished more than once for the same crime or be forced to give evidence against them. If someone has already been tried and acquitted for a crime, they cannot be tried again for the same offense.

8. **Article 14 — Inviolability of Dignity of Man:** This article guarantees the dignity and privacy of every person. Citizens must be protected from degrading treatment or unnecessary searches. Unlawful surveillance of someone's private life or home would violate their dignity and privacy.

9. **Article 15 — Freedom of Movement:** Citizens have the right to move freely throughout Pakistan and live wherever they choose. A person can travel or move to any city in Pakistan without needing government approval.

10. **Article 16 — Freedom of Assembly:** Citizens have the right to hold peaceful gatherings, meetings, and protests without using weapons. A group of people organizing a peaceful protest in a public place is protected under this article.

11. **Article 17 — Freedom of Association:** Citizens have the right to form political parties, organizations, or unions, as long as they do not disturb public order. Workers forming a labor union to protect their rights at work is an example of freedom of association.

12. **Article 18 — Freedom of Trade, Business, or Profession:** Citizens are free to choose and practice any profession, trade, or business, subject to regulations and qualifications. Anyone who qualifies to be a doctor or lawyer can practice their profession without unnecessary restrictions.

13. Article 19 — Freedom of Speech: Every citizen has the right to express their thoughts and opinions freely, but the government can limit this right for reasons like national security. Speaking out against government policies in a peaceful way is protected, but promoting violence may be restricted.

14. Article 19 - A — Right to Information: Citizens have the right to access public information. This promotes transparency in government affairs. Citizens can request government documents or data about public projects to ensure transparency.

15. Article 20 — Freedom to Profess Religion: Every citizen has the freedom to practice and promote their religion without interference. A Muslim, Christian, or Hindu is free to practice their religion openly in Pakistan.

16. Article 21 — Safeguard against Taxation for Religious Purposes: No one can be forced to pay taxes that are specifically used for the promotion of a religion they do not follow. A Hindu cannot be taxed to fund activities promoting Islamic religious practices.

17. Article 22 — Safeguards as to Educational Institutions: Educational institutions cannot force students to receive religious instruction that goes against their own faith. Additionally, no discrimination is allowed in schools based on religion. A Christian student in a government school cannot be forced to study Islamic religious content against their beliefs.

18. Article 23 — Protection of Property Rights: Citizens have the right to acquire, hold, and dispose of property anywhere in Pakistan. A person can own land, houses, or businesses without government interference.

19. Article 24 — Protection of Property: No citizen can be deprived of their property without proper legal procedures and compensation. If the government takes land for a public project, they must compensate the owner fairly.

20. Article 25 — Equality of Citizens: All citizens are equal before the law and should not face discrimination based on gender, race, religion, or caste. A woman and a man must be treated equally under the law in courts and public offices.

21. Article 25 - A — Right to Education: The state must provide free and compulsory education to children aged 5 to 16. All children, regardless of social status, must have access to free education in government schools.

22. Article 26 — Non-Discrimination in Respect of Access to Public Places: No citizen can be denied access to public spaces like parks, restaurants, or libraries based on race, religion, or gender. A person cannot be refused entry into a park just because of their religion.

23. Article 27 — Safeguard against Discrimination in Services: No discrimination is allowed in government services or employment opportunities based on race, religion, gender, or social background. A job applicant must be considered based on their qualifications, not their religion or gender.

24. Article 28 — Preservation of Language, Script, and Culture: Citizens have the right to promote and preserve their language, culture, and traditions. People in Balochistan or Sindh can promote their regional languages and cultures.

25. Articles 29 to 40 — Principles of Policy: These articles outline the basic principles that the government should follow to promote the welfare of the people.

Civic Responsibilities and Duties:

Civic responsibilities and duties are the obligations that a citizen must fulfill to contribute positively to their society and ensure the smooth functioning of the government and social systems. They go beyond personal rights and focus on collective actions that support the nation.

Key Civic Responsibilities and Duties:

- 1. Obeying the Law:** Every citizen must follow the laws set by the government. This ensures order, safety, and justice in society. Example from Pakistan: Following traffic rules, such as stopping at a red light, or paying taxes on time, is an example of obeying the law.
- 2. Paying Taxes:** Paying taxes is a duty that helps fund essential services like education, healthcare, infrastructure, and defense. Example from Pakistan: Paying income tax or sales tax helps the government run services like public schools and hospitals.
- 3. Voting in Elections:** Voting is a fundamental civic responsibility that allows citizens to choose their leaders and influence government decisions. It helps ensure that the government reflects the will of the people. Example from Pakistan: Citizens voting in general elections to elect Members of the National Assembly or Provincial Assemblies.
- 4. Respecting the Rights of Others:** Every citizen must respect the rights and freedoms of others, such as the right to freedom of speech, religion, and property. Example from Pakistan: Respecting others' freedom to practice their religion or respecting private property are examples of this duty.
- 5. Serving on a Jury:** In countries where jury service exists, citizens are required to participate in jury duty to ensure fair trials. While this is more common in countries like the USA, civic duty in Pakistan is reflected in other forms like participating in community decisions. Example from Pakistan: While Pakistan doesn't have a jury

62

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system, citizens can participate in community decision-making processes, such as local councils.

6. Community Service: Being involved in community improvement through volunteering or helping in social welfare activities is a key civic responsibility. Example from Pakistan: Many citizens participate in community activities such as helping during natural disasters (e.g., flood relief efforts) or volunteering at charity organizations.

7. Participating in Public Discourse: Staying informed about political and social issues and participating in discussions to voice opinions on public policies is essential. Example from Pakistan: Citizens actively engaging in town hall meetings or discussions about government decisions on public forums is an example of participation.

8. Defending the Nation: Citizens have a duty to defend the nation when needed, either by serving in the military or contributing to national defense in other ways. Example from Pakistan: Young citizens can join the armed forces or support national defense in other ways, such as working for the welfare of soldiers.

9. Promoting National Unity: Citizens are responsible for fostering a sense of unity and discouraging discrimination based on race, religion, or ethnicity. Example from Pakistan: Promoting unity among diverse ethnic groups and speaking against regionalism or sectarian violence helps strengthen the nation.

10. Protecting the Environment: Citizens should take care of the environment by not polluting and helping to conserve resources like water and forests. Example from Pakistan: Participating in tree plantation drives or conserving water in areas facing shortages, such as Balochistan, are examples of environmental responsibility. Here are 20 additional civic duties that citizens should fulfill, including examples from Pakistan:

11. Promoting Education: *Explanation:* Citizens should advocate for the importance of education and help ensure that children in their communities go to school. Example from Pakistan: Encouraging children in rural areas to attend school or volunteering to teach at local schools or literacy programs.

12. Helping in National Emergencies: In times of national emergencies like floods or earthquakes, citizens should offer help in relief efforts. Example from Pakistan: Assisting in relief efforts during floods, such as donating food, clothing, or providing shelter to affected families.

13. Participating in the Census: Citizens should cooperate with government officials during population censuses to provide accurate data for national planning.

Example from Pakistan: Providing accurate information during the Pakistan Population Census helps the government in resource allocation.

14. Promoting Peace and Tolerance: Citizens should promote peace and tolerance by discouraging violence, extremism, and hatred. Example from Pakistan: Supporting peace campaigns and educating against extremism, especially in areas affected by terrorism.

15. Protecting Public Property: Citizens should take care of public property like parks, roads, and government buildings. Example from Pakistan: Avoiding vandalism of public monuments, not littering parks, and helping keep public spaces clean.

16. Supporting Public Health Initiatives: Citizens should cooperate with health programs such as vaccination drives or awareness campaigns. Example from Pakistan: Participating in polio vaccination campaigns to ensure children are immunized.

17. Following Environmental Laws: Citizens should adhere to laws protecting the environment, such as laws against pollution or illegal logging. Example from Pakistan: Avoiding littering in rivers and not burning waste in open areas to reduce pollution.

18. Reporting Crimes: It is the duty of every citizen to report any crime or illegal activity to authorities to maintain law and order. Example from Pakistan: Reporting incidents like theft, illegal land grabbing, or suspicious activities to local police.

19. Respecting National Symbols: Citizens should respect national symbols such as the flag, anthem, and the Constitution. Example from Pakistan: Standing up respectfully when the national anthem is played and honoring the Pakistani flag on national holidays.

20. Serving in Local Government or Committees: Citizens should be involved in local decision-making by participating in community or local government bodies. Example from Pakistan: Joining local councils or committees that manage community resources, such as water or infrastructure.

21. Avoiding Corruption: Citizens should avoid corrupt practices like bribery, and report corruption when witnessed. Example from Pakistan: Refusing to give or take bribes for services like getting a driving license or a business permit.

22. Preserving Cultural Heritage: Citizens have a duty to protect and promote their cultural heritage, including historical sites and traditions. Example from Pakistan: Supporting the preservation of historical sites like Mohenjo-Daro or participating in cultural festivals.

To The Point "Civics and Community Engagement" (GCCE-101)

23. Fulfilling Contracts and Agreements: Citizens should honor contracts and agreements they enter into, contributing to trust and legal order. Example from Pakistan: Fulfilling loan agreements with banks or keeping promises in business dealings.

24. Helping in Crime Prevention: Citizens should cooperate with law enforcement agencies in preventing crimes. Example from Pakistan: Participating in neighborhood watch programs or reporting drug-related activities in the community.

25. Encouraging Cleanliness: Citizens should maintain cleanliness in their surroundings and avoid littering public spaces. Example from Pakistan: Supporting government initiatives like "Clean Green Pakistan" by keeping streets, parks, and public areas clean.

26. Upholding Democratic Values: Citizens should uphold values like justice, freedom, and equality to promote democracy. Example from Pakistan: Advocating for equal rights for women and minorities in political and social forums.

27. Promoting Human Rights: Citizens should respect and promote the human rights of all individuals, ensuring dignity and freedom for everyone. Example from Pakistan: Supporting campaigns for women's rights or the rights of religious minorities.

28. Being a Good Neighbor: Citizens should help their neighbors and contribute to building a supportive and caring community. Example from Pakistan: Offering help to neighbors in need, such as during health emergencies or sharing resources like water in drought-hit areas.

29. Encouraging Fairness in Business: Citizens should practice honesty and fairness in business and trade, avoiding exploitation or cheating. Example from Pakistan: Avoiding overcharging customers or selling substandard products in local markets.

30. Participating in National Days and Events: Citizens should actively participate in national events like Independence Day, which strengthens national unity. Example from Pakistan: Celebrating Independence Day on August 14th by attending parades, flag hoisting, and expressing national pride.

Ethical Considerations in Civic Engagement:

Ethical considerations in civic engagement refer to the moral principles or guidelines that shape how citizens should participate in their community and political activities. These ethics help people behave responsibly, respectfully, and fairly when they engage in discussions, decisions, and actions.

society. By following these ethical guidelines, people can make sure their involvement benefits the community and promotes peace and justice.

Why These Considerations Matter in Pakistan? In Pakistan, civic engagement happens in various forms, from voting in elections to participating in community projects. By following ethical guidelines, citizens help build trust, unity, and cooperation in society. For example, if political parties and their supporters follow these ethics during election campaigns, they can avoid violence, foster peaceful dialogue, and encourage respectful debate. This will help create a more just and democratic society where all voices are heard fairly.

In summary, ethical considerations in civic engagement guide how people in Pakistan (and elsewhere) should act when participating in public life, ensuring that their actions are respectful, peaceful, and beneficial to all.

Ethical Considerations in Civic Engagement (Accountability, Non-violence, peaceful Dialogue, Civility, etc.):

Ethical considerations in civic engagement are about making sure that people act responsibly and morally when they participate in community activities, political processes, or public discussions. This includes behaviors like accountability, non-violence, peaceful dialogue, civility, and others. Let's explain each of these in detail, with examples from Pakistan, to make it clear.

1. Accountability: Accountability means taking responsibility for your actions and decisions then later on you are accountable for them. If you promise to do something or take on a role in the community, you are responsible for the outcome. You must be open, honest, and willing to explain your actions to others.

When you participate in public matters, whether it's as a citizen or as a leader, you need to be accountable to the community. For example, if a local leader promises to build a school, accountability means making sure the funds are used properly, the project is completed, and explaining what was done if things didn't go as planned. A notable example of accountability in Pakistan was the 2013 general elections when citizens used social media platforms to demand transparency from the Election Commission. They wanted explanations and clarity regarding the counting process and raised questions about any possible election rigging. Citizens held their leaders accountable, which encouraged more transparent elections in the future.

2. Non-Violence: Non-violence is the practice of engaging in actions without causing harm to others. It promotes peaceful means of resolving disputes or making changes in society without violence, such as protests or advocacy.

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In Civic Engagement, when citizens want to express their views, especially if they disagree with the government or policies, they should do so in a non-violent way. This can be through peaceful protests, speeches, or writing, rather than using violence or threats. In Pakistan, the Lawyers' Movement of 2007 is a good example of non-violence. The movement began when then-President Pervez Musharraf suspended the Chief Justice of Pakistan, Iftikhar Muhammad Chaudhry. The lawyers protested across the country for the restoration of the judiciary, and they did so mostly peacefully, through rallies, speeches, and public discussions.

3. Peaceful Dialogue: Peaceful dialogue means talking in a calm, respectful way even when discussing difficult or controversial issues. It involves listening to the other side and avoiding shouting or arguments. Even In Civic Engagement, peaceful dialogue is essential because it allows people to exchange ideas without hostility. When people use peaceful dialogue, they can find common ground and work together to solve problems, even if they have different opinions. In Pakistan, during the National Reconciliation Ordinance (NRO) debates, political leaders from different parties engaged in peaceful dialogue to discuss the future of corruption cases and political disputes. Rather than resorting to violence, they used the platform of the Parliament to debate and find a solution, setting an example of dialogue over conflict.

4. Civility: Civility refers to being polite, respectful, and courteous in your interactions with others, even when you disagree. It means avoiding rude or aggressive behavior and treating everyone with dignity. In Civic Engagement, civility ensures that public discussions remain respectful and productive. It allows people from different backgrounds and with different opinions to express themselves without fear of insults or personal attacks. In Pakistan's parliamentary debates, sometimes see both civility and a lack of it. The best examples of civility are when politicians debate policies in a respectful way, despite being from different parties. An example of this would be when Benazir Bhutto and Nawaz Sharif, after years of rivalry, engaged in civil talks and worked towards the peaceful transfer of power in the 1990s, focusing on the democratic process rather than personal insults.

5. Respect for Diversity: Respect for diversity means acknowledging and valuing the differences in people, including their ethnicity, religion, language, and values. It means treating everyone fairly, no matter their background. In Civic Engagement, a healthy society recognizes that its citizens come from different backgrounds. Civic engagement must respect these differences and include everyone's voice, no matter their race, religion, or beliefs. Pakistan is a diverse country with multiple ethnic

groups like Punjabis, Sindhis, Baloch, and Pashtuns, as well as religious minorities such as Christians, Hindus, and Sikhs. Respect for diversity was emphasized in the Constitution of Pakistan, where minorities are given special seats in the National Assembly and provincial assemblies. This is a way of ensuring that all groups in Pakistan are included in the decision-making process.

6. Transparency: Transparency means being open and clear about decisions, actions, and processes, especially in public matters. It involves sharing information honestly and openly with others. In Civic Engagement, In public life, transparency is crucial for building trust. When government officials or community leaders share all necessary information, citizens can make informed decisions and hold them accountable. The Right to Information Act in Pakistan is an example of promoting transparency. This law allows citizens to request information about government actions, decisions, and spending. For instance, if citizens want to know how public funds are being used in a road-building project, they can request this information to ensure there is no corruption.

7. Justice and Fairness: Justice and fairness mean treating everyone equally and making decisions that are based on fairness, without favoritism or discrimination. In Civic Engagement, when citizens engage in public matters, they should aim to promote justice and fairness. This means standing up for everyone's rights, not just your own or those of your group. The 2010 flood crisis in Pakistan showed examples of justice and fairness in civic engagement. Volunteers, NGOs, and government officials worked together to ensure that food, water, and shelter were distributed fairly among affected people, regardless of their social status, location, or ethnic background.

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